



TLD Group

Code of Ethics and Business Conduct

PREAMBLE

TLD is committed to conducting its business with honesty and integrity and in accordance with high legal and ethical standards. This Code is designed to provide guidance on TLD ethical principles, to all Employees, Officers and Members of the Board of Directors of TLD and all its affiliated companies.

The Code is not a comprehensive manual and does not cover every situation that might be encountered. Nevertheless, it provides guidance for specific situations that may arise. It is your responsibility to comply with this Code and to exercise good judgment so as to act in a manner that will reflect favorably upon TLD and you. You should seek to comply with the spirit as well as the letter of this Code. You may not attempt to achieve indirectly, through the use of third parties (like agents or other intermediaries), acts that are prohibited directly by the Code. There are no acceptable reasons for violating the Code. Violations of law, regulations, or this Code will make you subject to disciplinary action.

This Code does not include all of TLD's policies on ethical or legal matters; you are responsible for knowing all other TLD policies and laws applicable to your position. TLD and its Directors and Employees must in particular endeavor to comply with all applicable legal requirements in all countries in which TLD operates or holds assets.

This Code is not an employment contract and nothing contained in this Code should be construed as a guarantee of continued employment. Compliance with the Code is, however, a condition to your continued employment or position on the Board. The requirements of this Code are in addition to any others contained in any other agreement you may have with TLD.

The TLD Group Steering Committee maintains policies and procedures which are set forth in this Code, which effective September 1st 2009, supersedes all previous Codes of Conduct, and remains in effect subject to any amendments. TLD, at its sole discretion, may change, modify, or otherwise alter this Code at any time. The Code is posted on the TLD Intranet Site (www.tld-gse.com/en/private) in the Corporate section and is available to any third party free of charge by writing to:



TLD Group
Parc Tertiaire Silic
21, rue du Jura – BP 10525
94633 RUNGIS Cedex
France

or by calling any TLD regional headquarters. Any amendment of the Code will be promptly posted on the Intranet Site.

DEFINITIONS

The following terms, as used in this Code, are defined as follows:

“Code” means TLD’s Code of Ethics and Business Conduct.

“Company” means TLD Group or the TLD affiliated company which employs the Employee, Officer or Director.

“Director” means a Member of the Board of Directors of a TLD Company, and the President of French Société par Actions Simplifiée.

“Employee” means an individual who is employed by a TLD Company, including all Officers and Directors.

“Ethics Committee” means all the members of the TLD Group Steering Committee and the Ethics Officers for TLD America, TLD Asia and TLD Europe, and the Committee Secretary.

“Ethics Officers” for TLD America, TLD Asia and TLD Europe, mean the individuals designated by the TLD Group Steering Committee as Ethics Officers for those entities. Currently, the Ethics Officer for TLD America is Mark Garlasco; the Ethics Officer for TLD Asia Hong-Kong is Allen Fu and for TLD Asia in P.R. of China is Thomas Dorn, and the Ethics Officer for TLD Europe is Valentin Schmitt. The Committee Secretary is currently Jean-Jacques Vincent.

“Government Contract” means a contract between a TLD Company and a Government or a Government entity. In particular, for the United States of America, it means a contract between a TLD Company and the United States or an entity of the United States which is subject to the United States Federal Acquisition Regulations (“FAR”) and includes contracts wherein a TLD Company is considered a Government contractor under the FAR.

“Immediate Family Member” means any Employee’s or Director’s spouse, brother, sister, parents, children, step-children, father-in-law, mother-in-law, sister-in-law, brother-in-law, son-in-law, daughter-in-law, grandparent, and any other member of the Employee’s or Director’s household.

“Intranet Site” means the website accessible to TLD Employees at www.tld-gse.com/.

“Officer” means a duly elected Officer of a TLD Company.



“TLD” means TLD Group, and all its subsidiaries and affiliated companies.

“TLD America” means the Companies of the TLD Group which are headquartered in North and South America, in Japan and includes in particular TLD (USA) Inc., TLD America Company, TLD ACE Company, TLD Lantis Company, TLD Canada and TLD Japan and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies.

“TLD Asia” means the Companies of the TLD Group which are headquartered in Asia and includes TLD Asia (Hong Kong), TLD Asia (Shanghai), TLD Asia (Singapore), TLD Asia (Wuxi), and Joint Sourcing Team (Hong Kong) and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies..

“TLD Europe” means the Companies of the TLD Group which are headquartered in Europe and in Middle East and includes in particular TLD Group, TLD Europe and TLD MEAI and all companies that would be created or acquired after the date hereof by any of the above-mentioned companies..

“TLD Group” means the company, organized under the laws of the Republic of France, which is the owner of the shares of the companies of TLD America, TLD Asia and TLD Europe.

“TLD Group Steering Committee” currently means Jean-Marie Fulconis, Antoine Maguin, Mark Garlasco, Allen Fu, Thomas Dorn, Hervé Criquillon, Valentin Schmitt, David Flahault and Mark Pollack.

ETHICS POLICY

The policy of TLD is for each TLD Company to comply with all governmental laws, rules and regulations applicable to the Company and its business.

TLD expects compliance with its standard of integrity throughout the organization and will not tolerate Employees who achieve results at the cost of violation of law or who deal unscrupulously. Each Company's Directors and Officers support, and expect the Company's Employees to support any Employee who passes up an opportunity or advantage that would sacrifice ethical standards.

We will obtain business legally and ethically and we wish to build long-term relationships with our customers and partners by demonstrating honesty and integrity. Our marketing and advertising will be accurate and truthful.

The Company cares how results are obtained, not just that they are obtained. Employees should deal fairly with each other and with the Company's suppliers, customers, competitors and other third parties. In particular, the practice followed for customer gifts, travel and entertainment will be defined by the management of each sales entity on clear and reasonable basis, according to TLD business ethical principles and the acceptable local practice, and will be communicated to the Employees on a regular basis.

We will not do business with other parties who are likely to harm TLD's reputation. For example, we will avoid doing business with others whom we would know, or strongly suspect, to



intentionally and continually violate the law. These laws include, for example, local environmental, employment, safety and anti-corruption statutes. For the United States of America, in particular, violations of law include any suspected violations of U.S. law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code, or violations of the civil False Claims Act (Title 31 United States Code, §§ 3729-3733). All arrangements with third parties must comply with TLD procedures and the applicable laws. We will not use a third party to perform any act prohibited by law or by the TLD Group and local procedures.

Whereas we acknowledge that the cooperation with agents, distributors and consultants is necessary and important in term of commercial action, marketing and customer support, we consider that commission rates or fees paid to dealers, distributors, agents, finders or consultants must be reasonable in relation to the value of the product or work that is actually being done, and consistent with law and local practice. The practice and procedures followed for such matters will be defined by the management of each TLD sales entity on clear and reasonable basis, and will be communicated to the Employees on a regular basis. We will not pay commissions or fees that we believe will become bribes.

It is the Company's policy that its books and records should accurately reflect its transactions in reasonable detail and in accordance with its accounting practices and policies. TLD prohibits false or misleading entries in its books and records for any reason and will not condone any undisclosed or unrecorded bank accounts or assets. Employees are expected to record all transaction accurately in the Company's books and records, and to be honest and forthcoming with the Company's internal and external independent auditors. A contract's value must not be inflated, duplicated or made with the intention that any portion is to be used for any purpose other than what is described. All invoices must accurately reflect the products or services sold or leased at the true price and terms of sale. You must never generate an invoice with an inaccurate valuation to enable the purchasing/leasing party's ability to avoid duties, customs or other taxes. All falsification of books and records and creation or maintenance of any off-the-record bank accounts are strictly prohibited.

The Company expects candor from Employees at all levels and adherence to its policies and internal controls. One harm which results when Employees conceal information from higher management or the auditors is that other Employees think they are being given a signal that the Company's policies and internal control can be ignored when they are inconvenient. That can result in corruption and demoralization of an organization. The Company's system of management will not work without honesty, including honest bookkeeping, honest budget proposals, and honest economic evaluation of projects.

It is the Company's policy to make full, fair, accurate, timely, and understandable disclosure in reports and documents that the Company files with the public communications. All Employees are responsible for reporting material information known to them to higher management so that the information will be available to senior executives responsible for making disclosure decisions.



CONFLICTS OF INTEREST POLICY

It is the policy of TLD that Directors, Officers and Employees are expected to avoid any actual or apparent conflict between their own personal interests and the interests of TLD.

A conflict of interest occurs when your private interest interferes with the interests of TLD. This can arise when you take actions or have interests that make it difficult to perform your work objectively and effectively or when you or an Immediate Family Member receive improper personal benefits as a result of your position with TLD. You must disclose to the Ethics Committee all actual and potential conflicts of interest including any material transaction or relationship that reasonably could be expected to give rise to a conflict of interest.

TLD can reserve the right to terminate or transfer you, in accordance with the local law, if you have a conflict of interest or require you to divest yourself of the interest as a condition of continued employment. In the case of a Director, TLD reserves the right to remove you from the Board.

The following are common examples of situations that may involve conflicts of interest:

- **Moonlighting and Outside Interests**

TLD recognizes and respects your right to participate in outside activities of your choice. However, during your employment by or tenure with TLD, you may not knowingly, whether directly or indirectly, maintain any outside business, financial interest, directorship or activity that is in conflict with TLD's interests or activities. You may not engage in any activity or business that interferes with your ability to properly and fully discharge your duties at TLD. Directors must notify the Ethics Committee if they change employment.

You are prohibited from selling your own products or services that are competitive to TLD and are prohibited from knowingly engaging in activities that enhance marketability or constitute support of a competitor's products or services.

- **Outside Business Relations with TLD Competitors, Customers, Vendors and Suppliers**

If yourself or any Immediate Family Member become directly or indirectly involved as an independent contractor or consultant to, any TLD competitor, customer, vendor or supplier, you must inform immediately the Company. You may not engage or participate, directly or indirectly, in the making of any significant decision on behalf of TLD in connection with the sale or purchase of any products or services (including whether to hire or contract with the person or business entity) to or from any person who is an Immediate Family Member or any business entity in which an Immediate Family Member has a substantial interest without prior written approval from the Ethics Committee.

- **Business with Former Employees**

TLD will enter into a business arrangement with a former Employee, a company that employs a former Employee, or a company with which a former Employee has a significant ownership interest only if the arrangement is in TLD's best interest and in no way brings into question TLD's ethical standards. Business arrangements with former Employees must be approved



in writing in advance by a member of the Ethics Committee, who will inform the other members thereafter.

- **The Use of TLD Assets for Outside Interests**

You are prohibited from using TLD facilities, materials, information technology, equipment or any other resources other than in connection with the performance of your job duties and on behalf of TLD other than nominal/incidental use that is not in violation of the TLD's policy regarding electronic communications systems.

- **Outside Financial Interests**

If yourself or any Immediate Family Member knowingly owns or envisage to acquire any financial interest in any TLD customer, supplier, vendor or competitor, you must inform immediately the Ethics Committee. Mutual fund investments and/or blind trusts, where investment decisions are not made under your specific direction, are not considered to "knowingly own a financial interest", and are not in violation of this Code.

The Code does not restrict you or your Immediate Family Members from owning 1% or less of stock in publicly-held companies.

- **Employment of Immediate Family Members of Employees**

TLD seeks to employ the most qualified candidates for every position and to encourage all Employees to seek advancement opportunities within TLD. An Employee's Immediate Family Member may be considered for employment by TLD if the individual possesses all of the qualifications for employment and as long as the employment of an Immediate Family Member does not create an actual conflict of interest or the appearance of a conflict of interest. An Immediate Family Member may not be hired, however, if the employment would create either a direct or indirect managerial relationship with an Immediate Family Member that could result in a Employee supervising or influencing the job evaluation, pay or benefits of their Immediate Family Member. Employees who marry or become members of the same household may continue employment as long as there is not a direct or indirect managerial relationship between the Employees.

- **Solicitation of TLD Employees**

You may not engage in the solicitation of another Employee to leave TLD for other employment.

CORPORATE ASSETS POLICY

It is the policy of TLD that Employees are expected to protect the assets of the Company and use them efficiently to serve and promote the interests and reputation of the Company. Those assets include tangible assets and intangible assets, such as confidential information of the Company. No Employee should use or disclose at any time during or subsequent to employment or other service to the Company, without proper authority or mandate, confidential information obtained from any source in the course of the Company's business.



In order to protect TLD's assets, no corporate funds or assets should be used for any unlawful purpose, or for any purpose not related to TLD's business, and no Employee should appropriate for his or her own use any TLD assets or make them available to other parties.

When dealing with suppliers and subcontractors, each Employee must protect, honestly and with integrity, the interests and assets of TLD.

- **Protecting Proprietary Information**

You are responsible for protecting TLD's assets, including confidential information. You are required to act in such a manner as to prevent loss of proprietary information through either intentional misappropriation or inadvertent disclosure. Examples of confidential information include trade secrets, sensitive business information, technical data, and/or all other such matters regarding TLD, its customers, suppliers, vendors, distributors or other corporate partners and all non-public information about the Company's plans, earnings, financial and business forecasts, competitive bids, and personnel.

- **Safeguarding TLD Assets**

TLD assets and services should be used solely for TLD's legitimate business purposes. The misuse or unauthorized removal of TLD's property from TLD's facilities is prohibited.

- **Trade Practices and Anti-Trust Compliance**

TLD is subject to laws commonly known as "trade practice" or "anti-trust" laws, which deal with agreements and practices that prevent such practices as price fixing, discriminatory pricing, certain tie-in sales. When conducting TLD business in a country, you are responsible for understanding the constraints imposed by local laws or customs in that country.

Certain discussions with competitors may be illegal under anti-trust laws. In contacts with competitors, you must not discuss product prices, terms of sales, customers, or allocation of marketplace.

If a competitor, trade association member, social contact, friend, or acquaintance employed or working for a TLD competitor raises any one of the above topics, in seriousness or jest, you should object and should refrain from discussing such matters.

- **Unfair Business Practices**

You should deal honestly, ethically and fairly with TLD's suppliers, vendors, customers, competitors and their Employees. Statements regarding TLD's products and services should not be untrue, misleading, deceptive or fraudulent.

You should not take unfair advantage of anyone through manipulation, concealment, abuse of privileged information, misrepresentation of material facts or any other unfair-dealing practice.



- **Dealing with Distributors and Resellers**

Discussions with distributors or other independent resellers of TLD products may be illegal if there is collaboration or agreement on prices quoted to a customer, bid rigging, agreements not to compete or other similar practices.

DIRECTORSHIPS POLICY

It is the policy of TLD to restrict the holding by Employees of directorships in non-affiliated, for-profit organizations and to prohibit the acceptance by any Employee of such Directorships that would involve a conflict of interest with, or interfere with, the discharge of the Employee's duties to the Company. Any Employee may hold Directorships in non-affiliated, non-profit organizations, unless such Directorships would involve a conflict of interest with, or interfere with, the discharge of the Employee's duties to the Company, or obligate the Company to provide support to the non-affiliated, non-profit organizations. Employees may serve as Directors of affiliated companies and such service may be part of their normal work assignments.

All directorships in publicly listed companies held by Employees are subject to receive an approval by the Alvest Supervisory Board.

In all other cases, Directorships in non-affiliated, for-profit organizations are subject to review and approval by the Chief Executive Officer of TLD Group.

DEALING WITH GOVERNMENTS

- **Political activities**

TLD generally does not make political contributions in support of any party or candidate in any election, whether Federal, state, national, or local, except as stated in this Code. This Code does not prevent an Employee, acting on his/her own behalf, and who is representing him/herself, from participating in the political process. You shall not make any political contribution for TLD or use TLD's name, funds, property, equipment or services for the support of political parties, initiatives, committees or candidates without the prior approval of the TLD Group CEO. This includes any contribution of value. You may not direct, urge or require any other Employee to contribute to any political party, cause, organization or candidate. Lobbying activities or government contacts on behalf of TLD, other than sales activities, should be coordinated with the Chief Executive Officer of TLD Group.

TLD's relationship with governmental agencies and their officials and personnel in each country where TLD conducts business should be maintained (i) in accordance with high ethical standards, (ii) in compliance with applicable legal requirements, and (iii) such that a public disclosure of such relationship would not be expected to impugn or jeopardize TLD's integrity or reputation.

TLD may authorize certain Employees or professional representatives to publicly support or oppose any existing or proposed legislation, regulations or interpretation of law at the local, state or federal level. You do not, in the course of your employment or in any other manner



that would imply such action is on behalf of TLD, have the authority to advocate for or against any existing or proposed legislation, regulation or interpretation of law unless expressly authorized by the Chief Executive Officer of TLD Group.

- **Anticorruption laws**

We comply with the anticorruption treaties and laws of the countries in which we do business, including the U.S. Foreign Corrupt Practices Act (FCPA). We will not directly or indirectly offer or make a corrupt or improper payment to government officials, including employees of government-owned or government-controlled enterprises. These requirements apply both to TLD Employees and agents, no matter where they are doing business. When we are authorized to engage agents, we make sure that they are reputable and require them to agree in writing to TLD's standards in this area.

- **Facilitating payments**

TLD prohibits making "facilitating payments" or "grease payments" to expedite a routine administrative action either directly or indirectly through a third party. No gift or entertainment should ever be offered or accepted by you or any of your Immediate Family Members unless it (i) is consistent with customary business practices, (ii) is not excessive in value, (iii) cannot be construed as a bribe or payoff, and (iv) does not violate any law or regulation.

Notwithstanding the foregoing, commercial business entertainment and transportation that is reasonable in nature, frequency, and cost is permitted. Reasonable business entertainment or transportation includes, without limitation, a lunch, dinner, or occasional sport, or cultural event; gifts of nominal value; entertainment at TLD or other authorized facilities; or authorized and reasonable transportation in TLD's or other vehicles. In addition, reasonable business entertainment covers traditional promotional events sponsored by TLD.

- **Anti-money laundering and anti-terrorism**

Money laundering is a process designed to conceal an illegal source of money to make it appear legitimate. TLD will not directly or indirectly participate in such practices. For example, the purchase of our products or services could be used to disguise illegally gained funds or support terrorism. To avoid becoming involved in such situations, TLD businesses are required to perform and document to all possible extent due diligence of parties involved in financial transactions.

- **Import and export**

When importing or exporting products, services, information or technology, we comply with all applicable national laws, regulations and restrictions, including those of the United States. When we travel internationally on company business, we are subject to laws governing what we import and export, including items we carry with us. TLD Employees are responsible for knowing the laws that pertain to them and for checking with their import/export compliance manager when in doubt.



COMMUNICATION AND ACKNOWLEDGMENT OF THE CODE

The Code is available on the TLD Intranet Site, which is one of the TLD primary internal management and information data bases.

The Chief Executive Officer of each TLD Company shall be responsible for duly communicating the Code to all Employees concerned, in the most efficient manner, informing them of any change, and regularly making sure that these Employees are informed about the content of the Code and understand it.

The categories of Employees concerned shall include, but is not limited to, all Directors, Officers, managers, sales employees, purchasing agents, and each Employee who is engaged in the performance of a Government Contract.

WAIVER OF THE CODE

The Ethics Committee should be contacted to: (i) request a waiver of the Code; (ii) report a suspected past or present violation of the Code; or (iii) report a suspected past or present actual or potential conflict of interest. Waivers of certain provisions of this Code are possible with approval from the Ethics Committee.

If you believe a waiver is appropriate in your case you must seek approval by contacting the Ethics Committee via email at ethics.Committee@tld-group.com. The Ethics Committee will review each waiver request and take such action that it believes is appropriate under the circumstances. You should be prepared to disclose all pertinent facts and circumstances, respond to inquiries for additional information, explain why the waiver is necessary, appropriate, or in TLD's best interests, and be willing to comply with any procedures that may be required to protect TLD in connection with a waiver. The Ethics Committee will retain written records of its actions.

Each disclosable circumstance, including all previously granted waivers of the Code, and all disclosures in which the Ethics Committee decided that no waiver of the Code was necessary, must be disclosed to the Ethics Committee annually for reconsideration, and you must indicate whether and to what extent relevant circumstances may have changed. The Ethics Committee may alter its treatment of any waiver request or disclosure at its discretion.

Any issue under the Code involving a member of the Ethics Committee will be examined by the other members of the Ethics Committee, which will report their findings to the Alvest Supervisory Board. Any waiver of this Code for members of the Ethics Committee may be made only by the Alvest Supervisory Board.

Failure to read or acknowledge this Code does not exempt you from your responsibility to comply with the Code or with applicable laws and regulations.



COMPLIANCE PROCEDURE AND OPEN DOOR COMMUNICATION

TLD encourages Employees to ask questions, voice concerns, and make appropriate suggestions regarding the business practices of the Company. Employees are to report promptly to management suspected violations of law, of this Code and the Company's procedures and policies, and the Company internal controls, and any significant overpayment of a Government Contract, so that management can take appropriate corrective action. The Company promptly investigates reports of suspected violations of law, policies, and internal control procedure.

Management is ultimately responsible for the investigation of and appropriate response to reports of suspected violations of law, the Code, and policies and internal control procedures. Finance & Internal Audit Department has primary responsibility for investigating violations of the Company's internal control, with assistance from others, depending on the subject matter of the inquiry. The persons who investigate suspected violations are expected to exercise independent and objective judgment.

Normally, an Employee should discuss such matters with the Employee's immediate supervisor. Each supervisor is expected to be available to subordinates for that purpose. If an Employee is dissatisfied following review with the Employee's immediate supervisor, that Employee is encouraged to request a further review by his upper supervisor, in the presence of the supervisor or otherwise. Reviews should continue to the level of management appropriate to resolve the issue.

Depending on the subject matter of the question, concern, or suggestion, each Employee has access to alternative channels of communication, for example, the Finance & Control Department of the TLD entity that employs this Employee, the TLD Group Finance and Internal Audit Department, the Human Resources Department and the Safety Health and Environment Department of the TLD entity that employs this Employee, the Ethics Committee.

Violations of law, the Code, and the policies and the Group internal controls may be reported on a confidential basis by contacting your Group entity local Ethics Officer or directly the Secretary of Ethics Committee.

Secretary of Ethics Committee
TLD Group
Parc Tertiaire Silic
21, rue du Jura – BP 10525
94633 RUNGIS Cedex
France

In particular, suspected violations of law or the Company's policies involving a Director or an Officer, as well as any concern regarding questionable accounting or auditing matters, should be referred directly to the secretary of the Ethics Committee and the TLD Group CEO.

Ultimately, Employees may also address communications to the members of the Alvest Supervisory Board, individually or as a group, by writing them at TLD Group, or such other addresses as the Company may designate and publish from time to time.



Employees wishing to make complaints without identifying themselves may do so by writing anonymously to the Secretary of the Ethics Committee.

All persons responding to Employee's questions, concerns, complaints, and suggestions are expected to use appropriate discretion regarding anonymity and confidentiality, although the preservation of anonymity and confidentiality may or may not be practical, depending on the circumstances. For example, investigations of significant complaints typically necessitate revealing to others information about the complaint and complainant. Similarly, disclosure can result from government investigations and litigation.

No action may be taken or threatened against any Employee for asking questions, voicing concerns, or making complaints or suggestions in conformity with the procedures described above, unless the Employee acts with willful disregard of the truth. Violations of this Code may be reported openly or anonymously without fear of retaliation. TLD will not discipline, discriminate against or retaliate against any Employee or other person who reports such conduct in good faith, whether or not such information is ultimately proven to be correct, or who cooperates in any investigation or inquiry regarding such conduct. Any Employee who receives a report of a violation of this Code must immediately inform the Ethics Committee.

Failure to behave honestly and failure to comply with the law, TLD and the Company's policies, and TLD and the Company's internal control may result in disciplinary action.

No one in TLD has the authority to make exceptions or grant waivers to TLD's foundations policies. It is recognized that there will be questions about the application of the policies to specific activities and situations. In cases of doubt, Directors, Officers, and Employees are expected to seek clarification and guidance. In those instances where the Company, after review, approves an activity or situation, TLD is not granting an exception or waiver but is determining that there is no policy violation. If TLD determines that there is or would be a policy violation, appropriate action is taken.

While it is TLD's desire to address matters internally, nothing in this Code should discourage any Employee from reporting any perceived illegal activity (including any violation of securities laws, anti-trust laws, environmental laws or any law of all countries, in particular, Federal, National, state and local authority) to the appropriate authority.

Update: January 7, 2013